

Based on the foregoing, the motion is not supported by sufficient diligent efforts to obtain Code of Civil Procedure section 473(b) relief. The motion is accordingly denied.

9. S-CV-0056043 Hill Top Center v. Kelly Architectural & Planning

Plaintiff's Motion to Compel Responses to Discovery without Objections and for Monetary Sanctions

Plaintiff Hill Top Center, LLC's objections to defense counsel, Dennis Wilson's declaration are overruled.

Plaintiff Hill Top Center, LLC's unopposed motion to compel responses to discovery without objections, is granted. Defendant Kelly Architecture & Planning, Inc. shall serve verified responses, without objections, to plaintiff's demand for inspection of documents, within 10 days. Plaintiff's request for monetary sanctions against defendant Kelly Architecture & Planning, Inc., is granted in the amount of \$1,200.

Plaintiff's Motion for Leave to File First Amended Complaint

Plaintiff Hill Top Center, LLC's unopposed motion for leave to file first amended complaint is granted. Plaintiff Hill Top Center, LLC shall file and serve the first amended complaint by **September 28, 2026**.

**10. S-CV-0056103 Gilchrist, Debra v. Ruth, Charity
R-SC-0028791 Gilchrist, Debra v. Ruth, Charity
R-SC-0028916 Gilchrist, Debra v. Ruth, Charity**

Motion to Consolidate

Defendants move to consolidate three separate actions. Plaintiff opposes the motion. The court notes plaintiff filed a response to the reply without leave of court, and the court declines to consider it.

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc. § 1048 (a).) Consolidation for all purposes is appropriate when the parties between the actions are identical. (*Sanchez v. Super. Court* (1988) 203 Cal.App.3d 1391.) Consolidation does not alter the parties' rights; rather, its purpose is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions. (*Est. of Baker* (1982) 131 Cal.App.3d 471, 485.) Relevant factors for consolidation, therefore, include: the predominance of common legal or factual issues; overlap in evidence and witnesses; the convenience of parties and attorneys; the relative advancement of the actions; and judicial efficiency. (*Todd-Stenberg v. Dalkon Shield Claimants Tr.* (1996) 48 Cal.App.4th 976, 979-80; *Est. of Baker*, 131 Cal.App.3d at 485.)

Here, all three matters involve the same parties and the same neighboring properties concerning alleged damages to plaintiff's property caused by the same named defendants. In the unlimited civil action, defendants have asserted a cross-complaint against plaintiff. The court finds there are common issues of fact and law between these three cases; overlap in evidence and witnesses; convenience of parties and attorneys; relative advancement of the actions; and judicial efficiency. (*Todd-Stenberg* 48 Cal.App.4th at 979-80; *Est. of Baker*, 131 Cal.App.3d at 485.)

For the foregoing reasons, the motion to consolidate is granted. Case nos. S-CV-0056103, R-SC-0028791, and R-SC-0028916 are ordered consolidated, and the lead case is designated as S-CV-0056103.

11. S-CV-0056153 Reddy, Pardha v. Dismukes, Bret

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Cross-Defendants' Demurrer to Dismuke Construction and Bret Dismukes' Amended Cross-Complaint

Cross-defendants Pardha Reddy and Catherine Reddy demur to the first, second and third causes of action alleged in the first amended cross-complaint for breach of contract, fraud, and declaratory relief. Cross-complainants Dismuke Construction and Bret Dismukes oppose the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Breach of Contract

The demurrer is sustained as to cross-complainants' first cause of action for breach of contract.

To state a cause of action for breach of contract, plaintiff must plead the existence of a contract, his performance of the contract or excuse for nonperformance, defendant's breach and resulting damage. Where the existence of a written contract is alleged, plaintiff must attach and incorporate by reference a copy of the written agreement, or set